

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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LAMONT CLIFTON,

Plaintiff,

SUMMONS

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
ERNST MIDY (Shield # 18214), NYPD OFFICER
JOHN O'ROURKE (Shield # 12156), NYPD
OFFICER JONATHAN TAVERAS (Shield # 30195) and
NYPD OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Plaintiff Designates
Kings County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 15, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER ERNST MIDY (Shield # 18214), 69th Command, 9720 Foster Avenue, Brooklyn, NY 11236

NYPD OFFICER JOHN O'ROURKE (Shield # 12156), 69th Command, 9720 Foster Avenue, Brooklyn, NY 11236

NYPD POLICE JONATHAN TAVERAS (Shield # 30195), 69th Command, 9720 Foster Avenue, Brooklyn, NY 11236

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THE CITY OF NEW YORK, NYPD OFFICER
ERNST MIDY (Shield # 18214), NYPD OFFICER
JOHN O'ROURKE (Shield # 12156), NYPD
OFFICER JONATHAN TAVERAS (Shield # 30195) and
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.
-----X

Plaintiff **Lamont Clifton**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected him to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, denial of medical treatment, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory

and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Lamont Clifton is a resident of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER ERNST MIDY, assigned Shield # 18214, employed with the 69th Command, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER ERNST MIDY (Shield # 18214) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER JOHN O'ROURKE, assigned Shield # 12156, employed with the 69th Command, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER JOHN O'ROURKE (Shield # 12156) is being sued in his individual capacity and official capacity.
8. NYPD OFFICER JONATHAN TAVERAS, assigned Shield # 30195, employed with the 69th Command, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. NYPD OFFICER JONATHAN TAVERAS (Shield # 30195) is being sued in his individual capacity and official capacity.

10. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
12. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. Police Officers John and Jane Doe #'s 2-8 are being sued in his/her individual capacity and official capacity.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
18. The City of New York held a 50(h) hearing examination of the Plaintiff on June 17, 2020.

STATEMENT OF FACTS

19. On July 30, 2019, at approximately 11:00 a.m. at 94th Street and Foster Avenue, Brooklyn, New York, several police officers from the 69th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Ernst Midy (Shield # 18214), NYPD Officer John O'Rourke (Shield #12156), NYPD Officer Jonathan Tavers (Shield #30195), and P.O. John and Jane Does #1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Clifton.
20. On July 30, 2019 at approximately 11:00 a.m., Plaintiff was the passenger in a car driven by his friend Terique Hines. Plaintiff was riding in the front passenger seat. As Plaintiff and Hines were waiting at a red light in the area of 82nd Street and Avenue L in Brooklyn, New York, an unknown vehicle pulled up next Plaintiff and Hines' car, and someone inside the unknown vehicle began firing a gun into Plaintiff and Hines' car. Hines immediately sped away, and Plaintiff felt a pain in his hip. Unknown if he was shot, or how badly he was injured, Hines began to drive Plaintiff to Brookdale University Hospital. However, their vehicle was soon pulled over by NYPD officers in a marked patrol car.
21. When defendant officers approached Plaintiff and Hines' vehicle, officers ordered Plaintiff and Hines to step out of the car. Plaintiff explained to defendant officers that they had just been the

victims of a shooting, noting the bullet holes in the car, and also explaining they were on the way to the hospital so that Plaintiff could receive treatment for the injury to his hip. Nevertheless, defendant officers detained Plaintiff and Hines roadside. Defendant officers determined an outstanding warrant existed for Hines, and Plaintiff volunteered to go to the 69th Precinct to accompany his friend, with the expectation that Hines would be released and would then take Plaintiff to the hospital.

22. During the course of the stop, at least two more NYPD marked patrol cars arrived on the scene, and approximately six defendant officers were present. Police officers searched the vehicle without consent by Plaintiff Clifton or Terique Hines. Plaintiff did not observe defendant officers remove any items of contraband from the vehicle, and Plaintiff was not informed that any contraband was recovered from the vehicle.
23. Despite the fact that the Plaintiff was not operating the motor vehicle, had committed no infractions, had no outstanding warrants, was not under arrest for any charges, and was still in pain from a gun-related injury, Plaintiff was handcuffed to bench inside the confines of the 69th Precinct and questioned by defendant officers about his ties to any criminal related activity, and told he had to wait to speak to another Detective. Although Plaintiff had not been told he was formally under arrest, or was suspected of violating any law, he was handcuffed and placed in a locked cell.
24. Plaintiff was detained at the 69th Precinct for hours. Despite having complained of a shooting-relating injury and requesting medical attention, defendant officers delayed for an extensive period of time before calling an ambulance to the precinct to transport him to the hospital. Despite not being charged or informed of his arrest, defendant officers shackled Plaintiff's hands and feet inside of the ambulance.

25. After examination at the hospital, defendant officers without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that the plaintiff had committed a crime, falsely arrested Plaintiff.
26. Plaintiff was transported to the 69th precinct and then transferred to Brooklyn Central Booking.
27. Plaintiff suffered emotional and physical harm as a result of his time in custody. Plaintiff was in pain from a shooting during his detention and was denied timely medical care.
28. While plaintiff was incarcerated at the 69th precinct and Brooklyn Central Booking, defendants falsely and maliciously told the Kings County District Attorney's Office that Plaintiff had committed numerous crimes, including Criminal Possession of Weapon and Possession of a Forged Instrument. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
29. Based on the defendant's false statements, the Kings County District Attorney's office chose to prosecute Plaintiff under docket CR-028556-19KN.
30. Plaintiff was incarcerated for approximately 6.5 day. During his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions.
31. Based on the defendants' false and malicious accusations, the Plaintiff was detained at the Brooklyn House of Detention, unable to pay the bail set by the court for five days.
32. On January 31, 2020, the above-stated malicious prosecution terminated in plaintiff's favor when the case against him was dismissed and sealed in its entirety.
33. Prior to dismissal, plaintiff attended 4 court appearances.
34. Plaintiff missed work as a result of his arrest and incarceration, and was unable to see his nine-year-old daughter during the time of his illegal detention.

FIRST CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

35. Plaintiff repeats and alleges paragraphs 1 through 34 as if fully set forth herein.
36. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
37. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
41. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
42. Defendants commenced and continued a criminal proceeding against plaintiff.

43. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
44. The prosecution and criminal proceedings terminated favorably to plaintiff on January 31, 2020.
45. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
46. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, including depriving him of timely medical care and subjecting him to unlawful search and seizure. .
51. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
52. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
53. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
54. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. Defendants owed a duty of care to plaintiff.
57. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so. They also deprived him of timely medical treatment of a known condition.
58. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

59. All of the foregoing occurred without any fault by plaintiff.
60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.
62. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
63. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
64. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

65. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff, despite his repeated requests they do so. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
67. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
68. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH, NINTH, CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's false-arrest/cruel and unusual punishment/unlawful-search claims (8th claim); malicious-prosecution claim (9th claim).

69. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.
70. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
71. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
72. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his Fourth, Fifth, Eighth and Fourteenth Amendment rights.
73. In particular, Plaintiff alleges that Defendants' use of cruel and unusual punishment, unlawful search, malicious prosecution and fabrication of evidence violated his Fourth, Fifth, and

Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice intent.

74. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
75. In the event Plaintiff prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
78. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
79. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs. This is evidenced by the more than 418 allegations of misconduct by officers of the 69th precinct.
80. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
84. The acts complained of deprived the plaintiff of his right:
- G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and
 - J. To receive equal protection under the law.

WHEREFORE, LAMONT CLIFTON, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
July 15, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
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40 Exchange Place
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New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER ERNST MIDY (Shield # 18214), 69th Command, 9720 Foster Avenue, Brooklyn, NY 11236

NYPD OFFICER JOHN O'ROURKE (Shield # 12156), 69th Command, 9720 Foster Avenue, Brooklyn, NY 11236

NYPD POLICE JONATHAN TAVERAS (Shield # 30195), 69th Command, 9720 Foster Avenue, Brooklyn, NY 11236

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
July 15, 2021

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.